

25STCV05328 25STCV05328

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-03

Motion: DEFENDANT YOUNG MEN'S CHRISTIAN ASSOCIATION OF GREATER LONG BEACH'S MOTION TO COMPEL RESPONSES TO ITS REQUEST FOR PRODUCTION OF DOCUMENTS, SET TWO; REQUEST FOR SANCTIONS IN THE AMOUNT OF \$5,580.00

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C731%2C09%2F03%2F2026

Source SHA-256: 206a2447f29cbea6bda6fcc839684d02c5062c3cbacb2ac236c089c27b31ca53

Case Number: 25STCV05328 Hearing Date: September 3, 2026 Dept: 731

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS

ANGELES - CENTRAL DISTRICT

SANDRA CASTILLO,

Plaintiff,

vs.

YOUNG MEN'S CHRISTIAN

ASSOCIATION

OF GREATER LONG BEACH, CLAUDIA

MENDOZA, ALVARO RODRIGUEZ, and

DOES 1 – 100, inclusive,

Defendants.

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

CASE NO: 25STCV05328

[TENTATIVE] ORDER RE: DEFENDANT

YOUNG MEN'S CHRISTIAN ASSOCIATION OF GREATER LONG BEACH'S MOTION TO COMPEL
RESPONSES TO ITS REQUEST FOR PRODUCTION OF DOCUMENTS, SET TWO; REQUEST FOR
SANCTIONS IN THE AMOUNT OF \$5,580.00

Dept. 731

September 3, 2026

8:30 a.m.

Matter No. 13

Moving Party: Defendant, Young Men's Christian Association of
Greater Long Beach

Opposing Party: Plaintiff, Sandra Castillo

Notice: OK

Background Facts

Pleadings

Plaintiff Sandra Castillo sues

Defendants Young Men's Christian Association of Greater Long Beach ("YMCA"),
Claudia Mendoza ("Mendoza"), Alvaro Rodriguez ("Rodriguez"), and Does 1-100
pursuant to a February 25, 2025, Complaint alleging statutory and common law
claims arising from Plaintiff's employment and termination of employment with
Defendant YMCA.

Motion Before the
Court

Now before the Court is the YMCA's June
4, 2026, motion to compel further responses to its Requests for Production of
Documents, Set Two, Nos. 97-108, with a request for monetary sanctions against
Plaintiff, her counsel of record, Adriana Burga, Esq. and Shegerian &
Associates, Inc., or both jointly and severally, in the amount of \$ 5,580.00.

The motion is opposed by Plaintiff,
who argues that because she served supplemental responses on August 3, 2026, indicating
lack of responsive documents, the relief requested in the YMCA's motion is
moot.

The YMCA disputes the mootness
question solely as to sanctions in its August 27, 2026, reply.

Motion to Compel
Further Responses; Request for Sanctions

Meet and Confer

A motion to compel further production must be accompanied by a meet and confer declaration under Code of Civil Procedure section 2016.040. (Code Civ. Proc., § 2031.310, subd. (b)(1).) A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion. (Code Civ. Proc., § 2016.040.)

Here, the moving papers attach a declaration from counsel showing sufficient meet and confer efforts preceded the filing of Plaintiff's production motion. (Motion, Valenti Decl., ¶¶ 11-16.)

b. Motion
to Compel

The Court finds that the component of the YMCA's motion seeking further responses to its production requests is MOOT.

The question of whether a supplemental response in fact satisfactorily resolves (i.e., moots) the issues raised by a discovery motion is a matter best determined by the trial court in the exercise of its discretion, based on the circumstances of the case. (Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 409 (Sinaiko).)

Here, as reflected in Plaintiff's opposition papers, Plaintiff served supplemental responses to RFP, Set Two, Nos. 97-108 on August 3, 2026. (Opposition, Burga Decl., ¶ 17, Ex. 4.)

A review of those responses shows that in response to all requests, subject to objections, Plaintiff responded, "[a]fter a diligent and reasonable search and inquiry, Responding Party has determined that no responsive documents have ever existed," a response that perfectly complies with Code of Civil Procedure section 2031.230's inability to comply requirements.

Critically, the YMCA's reply does not dispute the sufficiency of the supplemental responses, which include

objections, all despite the fact that the YMCA's moving papers intimate that Plaintiff waived objections to discovery. (Motion, 2:24-3:4.)

Under these circumstances, relief is MOOT as to compelling further responses.

The Court does not rule on whether Plaintiff waived objections to RFP, Set Two, which the YMCA's own reply recognizes it did not bring before the Court. (Reply, 2:23-3:1.)

c. Request
for Sanctions

i. Legal
Standard

The court must impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., § 2030.300, subd. (d).)

The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed. (Cal. Rules of Court, rule 3.1348, subd. (a).)

ii. Discussion

After review, the Court GRANTS sanctions against Plaintiff and her counsel of record, Adriana Burga, Esq., jointly and severally in the amount of \$ 5,580.00.

Specifically, the Court determines that although Plaintiff served Code-compliant responses to RFP, Set Two, such belated responses came on August 3, 2026, well after the YMCA filed its motion on June 3, 2026. And while a declaration from Plaintiff's counsel attempts to provide factual bases to find sanctions are not justified (Opposition, Burga

Decl., ¶¶ 7-11), the face of that declaration, as well as the attached email chain at Exhibit 3, show a gap between May 22, 2026, and August 3, 2026, during which time Plaintiff is not represented one way or the other to have contacted the YMCA regarding supplemental responses being on the way, Plaintiff undertaking a diligent search of responsive documents, or any other representation regarding supplemental responses.

Sanctions are DENIED as against Shegarian & Associates, which is not a “person, person, [or] attorney” contemplated in Code of Civil Procedure section 2023.040.

Defendant Young Men’s Christian Association of Greater Long Beach is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at smcdept731@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party’s email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: September 3, 2026 _____

MARK C. KIM

Judge of the
Superior Court